

23PSCV03751 23PSCV03751

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 23PSCV03751 Hearing Date: September 14, 2026 Dept: O

Tentative Ruling

NOTICE OF MOTION AND

MOTION TO ENFORCE SETTLEMENT AGREEMENT AND ENTER JUDGMENT AGAINST DEFENDANT

MANUEL NIEVES is GRANTED; a proposed order has been filed.

Background

This is

an automobile subrogation case.

On December 5, 2023, INTERINSURANCE EXCHANGE

OF THE AUTOMOBILE CLUB, an insurance exchange, filed suit against Defendant

MANUEL NIEVES.

On July 26, 2025, a notice of settlement of

the entire case was filed. (According to this motion, the case was settled on

7/8/24.) The Stipulation calls for Defendant to pay

the sum of \$500.00 on or before the 5th day of each month from May 5, 2024

through October 5, 2026, with the installments totaling \$15,000.00.

On August 6, 2025, Plaintiff dismissed

Defendant.

On August 6, 2026, the instant motion was

filed.

Discussion

Plaintiff brings forth this motion pursuant to Code of Civil Procedure section 664.6. Section 664.6 provides in relevant part that “the court, upon motion, may enter judgment pursuant to the terms of the settlement.” Under the statute, the court “retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.”

The

court grants the motion as Defendant has defaulted on said payments. More specifically, the last payment received by Plaintiff was on or about June 15, 2025, in the amount of \$500.00; Defendant has made total payments of \$4,000.00 under the Stipulation.

Pursuant to paragraphs |, 5, 6, 7, and 8 of the Stipulation, upon Defendant’s default, PLAINTIFF is entitled to cause judgment to be entered in the amount set forth in paragraph1 of the Stipulation that is, \$50,197.71 in principal, plus interest (\$6,690.74) at the rate of 5% per annum on said principal sum from December 5, 2023 (the date of filing of the Complaint) through August 4, 2026, less credit for all payments made prior to default (\$4,000.00), plus court costs of \$594.79, for a

total of \$53,483.24,

with interest continuing to accrue thereafter at the rate of \$6.88 per day.

Conclusion

Based on the foregoing, as the Stipulation expressly provides that the court has jurisdiction to dismiss this case and retain the right to enforce judgment pursuant to Code of Civil Procedure section 664.6, pursuant thereto, judgment is entered against DEFENDANT.